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General Comment

Several arguments have been made for allowing AI to be freely trained on copyrighted work:

1) Training AI on copyrighted work constitutes Fair Use

2) Training AI is a matter of national security

Point 1: Training AI on copyrighted work is not fair use, especially in the realm of creative works.

Per Section 107 of the Copyright Act, “Fair Use” considers the commercial effects of using the copywritten material. It takes money and extensive expensive resources (such as servers, electricity, water for cooling, and so on) to train AI, so unless the companies training the AI are receiving massive subsidies from government sources (which is something DODGE and current administration is actively trying to cut down on) companies training AI will ultimately need to recoup their financial losses, which means the ultimate end-goal of AI training is to create a salable product: a program that can generate work similar to what it’s been trained on, just faster, cheaper, and more prolific. This isn’t a not-for-profit venture. This directly diminishes the value of the copyrighted work used in the training model.

This is a direct violation of Fair Use.

This is why copyright law requires companies and other entities to purchase the rights to use copyrighted work. Selling these rights still provides economic viability to the original work. Bypassing this clause destroys the economic value of the copyrighted training material. Furthermore, removing these protections from copywritten work will damage the American economy as a whole.

Given the EU’s laws on AI, if the USA passes laws that don’t protect the work of American creators then these American citizens will preferentially sell, ship, and distribute their creative output within EU circles to prevent them from being available to US AI training models. This will not only limit data available to US AI training models, it will cool the American production of books, movies, games, and other creative works while providing a significant cultural and economic boost to the EU. Essentially it will allow the EU to become a bastion of “human creativity” and allow them to corner the market of consumers who want human-created products while depriving AI training companies material to work with.

If AI is allowed unfettered training access to copyrighted works, American cultural contributions to the arts will virtually disappear. Humans will be discouraged from developing skills to create movies, stories, art, and so on, leaving AI training models with less and less “fresh” material to train on as people simply opt out of the act of creation. This also means America media products will become more and more AI created mash that generates nothing new or innovative, ultimately driving down demand for American AI products. In short, the long-term effect of allowing AI to be freely trained on copyrighted work is the ultimate loss—not gain—of data for these programs. Yes, it will require more financial investment to train AI if they must buy rights from copyright holders to train using their data, but protecting the rights of creators ensures that there will still be people creating fresh data to be used for training in the future.

To prevent strangling the long-term availability of training data and handing over economic dominance of art and entertainment to foreign nations we cannot allow AI training to bypass copyright law and protections.

Point 2: Training AI without respecting copyright law creates a national security threat!

As stated above, allowing AI training to ignore copyright laws will economically destabilize and displace a large number of jobs in America; such a move is very unwise at a time where automation and robotics are reducing the number of jobs available, government employment is being reduced, federal funding withdrawals are causing workforce shrinkages, and Social Security is on the chopping block.

The people who will be displaced by unfettered AI training are people skilled with words, programming, navigating legal structures/ordinance, investigation, and so on. Without jobs these same people will be angry, financially desperate, and have lots of free time on their hands—a prime target for bad actors both foreign and domestic to incite to action. Keeping these people gainfully employed and feeling grateful that the government is protecting their jobs doesn't just help make America great again, it keeps American soil safer from civil war and espionage.

Yes, we do need AI development to help protect us from AI-driven missiles, fighter jets, and other military threats from abroad, but teaching computers how to draw, write a novel, direct movies, address the court, or write a news article has no bearing on these threats! Keep humans employed, fed, distracted and happy by protecting copyright law so we don't have to fight a war at home.